



A COMMUNITY OF CHOICE

Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

October 18, 2016

City Council
City of Cheyenne, WY

RE: Waterford Square 2nd Filing

After holding a round-table meeting on Wednesday, October 12, the applicant and staff decided to move forward with the plat option which vacates a portion of Waterford Blvd. and provides a 40' right-of-way between the north lots and the south lots. After holding follow-up meetings with staff to address staff's remaining concerns, the applicant has submitted a revised map to council (dated October 17, 2016). This map is a compromise solution which addresses the concerns regarding a private accessway and maintenance thereof.

Staff recommends approval of the revised map dated 10/17/2016 with the following conditions:

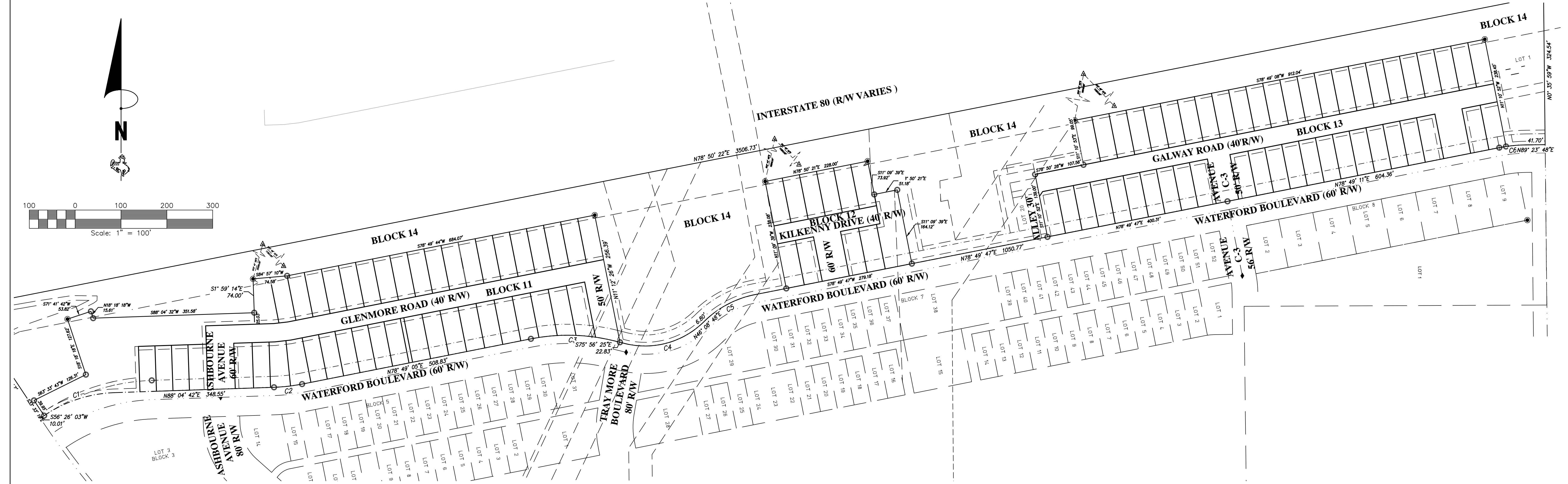
1. Name all small north-south connector streets.
2. Include the entire right-of-way of Waterford Blvd in the plat (to the south right-of-way line).
3. Add a drainage easement over the detention pond.
4. Include Lot 1, Block 6 of Waterford Square and add the City of Cheyenne as an owner on the plat.
5. Remove General Note 4, as it does not apply to this plat.
6. Replat the portion of Traymore Boulevard south of Waterford to align with the intersection created by this plat.
7. Adjust the lot line between Lots 2 and 3, Block 11 to allow the proposed duplex to meet setbacks.
8. Work with the City Parks department to provide all park facilities required by the MOU.
9. Re-align, remove, or adjust the utility easements to reflect the current plat's dedication of Right-of-way.
10. Adjust the technical aspects of the plat map to meet the recommendations of the City surveyor.
11. Provide a revised map to City (prior to submitting for recording) for agency review - to meet the request of the County Clerk and to allow review of the fulfillment of other map conditions.

Regards,

Seth Lloyd
Planner

Encl: Revised Map dated October 17, 2016
Comments on Waterford Square 2nd Filing
(from the review period on the 40' right-of-way proposal submitted to the City September 30, 2016 – the revised map is slightly different from this map, but the overall concept is similar)

Cc: City Clerk
City Attorney
Mayor's office



LAND DESCRIPTION

A tract of land being all of Lot 1, Block 1 Waterford Square and that portion of Waterford Boulevard, Waterford Square, City of Cheyenne, Laramie County, Wyoming Being more particularly described as follows;

Beginning at the southwest corner of Lot 1, Block 6 Waterford Square; thence along the north right of way of Waterford Boulevard for the following 13 courses; thence 250.31 feet along a curve to the right, through an angle of 32° 26' 48", having a radius of 442.00 feet, and whose long chord bears N.71° 51' 04"E., a distance of 246.97 feet; thence N.88° 04' 42"E., a distance of 266.11 feet to the beginning of a curve, to the left; thence 57.88 feet along said curve, through an angle of 09° 15' 45", having a radius of 358.00 feet, and whose long chord bears N.83° 26' 54"E., a distance of 57.81 feet; thence N.78° 49' 05"E., a distance of 508.83 feet to the beginning of a curve to the right; thence 194.77 feet along said curve, through an angle of 25° 14' 52", having a radius of 441.99 feet, and whose long chord bears S.88° 33' 40"E., a distance of 193.19 feet; thence S.75° 56' 25"E., a distance of 22.83 feet to the beginning of a curve to the left; thence 159.70 feet along said curve, through an angle of 57° 54' 47", having a radius of 158.00 feet, and whose long chord bears N.75° 06' 11"E., a distance of 152.99 feet; thence N.46° 08' 48"E., a distance of 6.80 feet to the beginning of a curve to the right; thence 138.04 feet along said curve, through an angle of 32° 40' 52", having a radius of 242.00 feet, and whose long chord bears N.62° 29' 18"E., a distance of 136.17 feet; thence N.78° 49' 47" E , a distance of 1050.77 feet; thence N.78° 49' 11"E., a distance of 604.36 feet to the beginning of a curve to the right; through an angle of 10° 34' 37", having a radius of 342.00 feet, and whose long chord bears N.84° 06' 29"E., a distance of 63.04 feet; thence N.89° 23' 48" E , a distance of 41.70 feet to the west right of way of Avenue C-4; thence leaving said right of way of Waterford Boulevard, S.00° 35' 59"E., along said right of way of Avenue C-4, a distance of 24.00 feet; thence S.89° 23' 48"W., a distance of 41.70 feet to the beginning of a curve to the left; thence 58.70 feet along said curve, through an angle of 10° 34' 37", having a radius of 318.00 feet, and whose long chord bears S.84° 06' 29"W., a distance of 58.62 feet; thence S.78° 49' 11" W , a distance of 604.36 feet; thence S.78° 49' 47"W., a distance of 1050.77 feet to the beginning of a curve to the left; thence 124.35 feet along said curve, through an angle of 32° 40' 52", having a radius of 218.00 feet, and whose long chord bears S.62° 29' 17"W., a distance of 122.67 feet; thence S.46° 08' 48"W., a distance of 6.80 feet to the beginning of a curve to the right; thence 183.96 feet along said curve, through an angle of 57° 54' 47", having a radius of 182.00 feet, and whose long chord bears S.75° 06' 11"W., a distance of 176.23 feet; thence N.75° 56' 25"W., a distance of 22.83 feet to the beginning of a curve to the left; thence 184.19 feet along said curve, through an angle of 25° 14' 52", having a radius of 418.00 feet, and whose long chord bears N.88° 33' 40"W., a distance of 182.71 feet; thence S.78° 49' 05"W., a distance of 508.83 feet to the beginning of a curve to the right; thence 61.76 feet along said curve, through an angle of 09° 15' 45", having a radius of 382.00 feet, and whose long chord bears S.83° 26' 54"W., a distance of 61.69 feet; thence S.88° 04' 42" W a distance of 348.55 feet to the beginning of a curve to the left; thence 163.28 feet along said curve, through an angle of 32° 27' 02", having a radius of 288.30 feet, and whose long chord bears S.71° 51' 12"W., a distance of 161.11 feet to the point of beginning.

GENERAL NOTES

- 1) BASIS OF BEARINGS - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "EAST" & "RIDGE".
- 2) NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN A F.E.M.A. SPECIAL 100-YEAR FLOOD HAZARD AREA AS SHOWN ON F.I.R.M. PANEL No's. 56021C1356F & 56021C1357F DATED JANUARY 17, 2007. A PORTION OF THE PROPERTY FALLS WITHIN THE CHEYENNE/LARAMIE COUNTY 100-YEAR FLOODPLAIN.
- 3) ALL LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾"x24" REBAR.
- 4) "ACCESS, UTILITY & DRAINAGE EASEMENT(S)" GRANTED TO AND BETWEEN THE OWNERS OF LANDS CONTAINED WITHIN THIS REPLAT, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR THE PURPOSE OF TRASH COLLECTION, EMERGENCY SERVICES ACCESS, MUTUAL INGRESS & EGRESS TO/FROM WEST 5TH AVENUE & SOUTHWEST DRIVE RIGHTS-OF-WAY, AND FOR PROVISION OF UTILITIES SERVICE(S).
- 5) "DRAINAGE EASEMENT(S)" GRANTED TO THE CITY OF CHEYENNE SOLELY FOR THE PURPOSE OF STORMWATER DRAINAGE AND/OR DETENTION.
- 6) THIS WATER AND SEWER UTILITY EASEMENT (HEREINAFTER REFERRED TO AS THE "BOPU UTILITY EASEMENT"), AS SHOWN AND DESCRIBED HEREON, IS GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE ("BOPU"). NO OTHER UTILITIES MAY INSTALL FACILITIES ON OR WITHIN THE BOPU UTILITY EASEMENT, EXCEPT AS FOLLOWS: OTHER UTILITIES MAY CROSS THE BOPU UTILITY EASEMENT, IF AND ONLY IF: (i) A UTILITY'S FACILITIES CROSS THE BOPU FACILITIES AT NO LESS THAN A 60 DEGREE ANGLE; (ii) A MINIMUM OF 24 INCHES OF VERTICAL CLEARANCE IS PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU; AND (iii) A COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU UTILITY EASEMENT IS PROVIDED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU UTILITY EASEMENT.

LEGEND

- SET ¾" X 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1½" ALUMINUM CAP STAMPED "P.E.L.S. 9283"
- ◆ FOUND NAIL SET BY P.E.L.S. 9283

VACATION STATEMENT

IT IS THE INTENT OF THIS PLAT TO VACATE ALL OF LOTS 2 THRU 19 AND LOTS 21 THRU 57, OF BLOCK 6, WATERFORD SQUARE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING; INCLUDING ALL INTERVENING EASEMENTS, LOT LINES AND RIGHTS-OF-WAY CONTAINED WITHIN THE PLAT BOUNDARY. EXCEPTING PRE EXISTING EASEMENTS AS SHOWN ON THE PLAT OF WATERFORD SQUARE (1ST FILING)

DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: Heartland Homes LLC., a Wyoming Corporation, owner in fee simple of the following described lands: all of Lots 2 thru 19 and Lots 21 thru 57, of Block 6, Waterford Square,(1st Filing) City of Cheyenne, Laramie County, Wyoming.

Has caused the same to be surveyed, vacated, and re-platted to be known as WATERFORD SQUARE, 2ND FILING, and does hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires and do hereby grant the easements for the purposes indicated hereon.

by: James Q. Woods III, Owner of Heartland Homes LLC.

ACKNOWLEDGEMENT

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

The foregoing instrument was acknowledged before me this ____ day of _____, 2016, by James Q Woods, III, Owner of Heartland Homes LLC.

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

CITY APPROVALS

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2016.

Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2016.

ATTEST: _____
Mayor City Clerk

WATERFORD SQUARE
2ND FILING
OF

A REPLAT OF LOTS 2 THRU 19 AND LOTS 21 THRU 57, BLOCK 6, WATERFORD SQUARE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

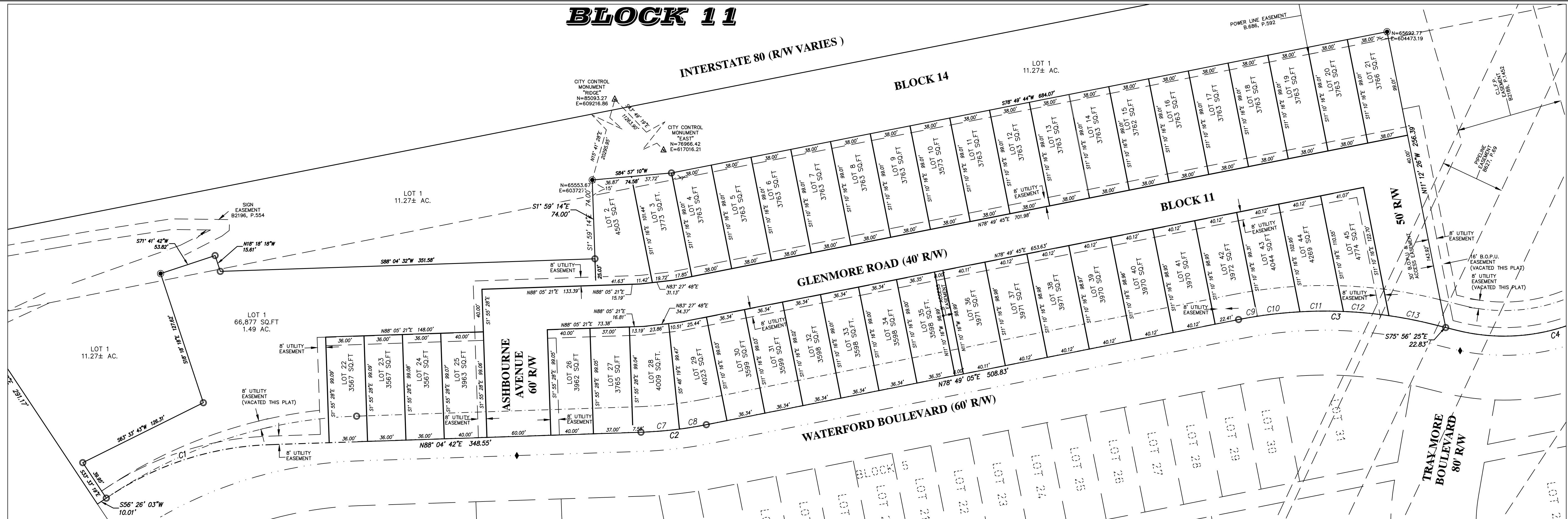
SHEET 1 OF 2 PREPARED JULY, 2016



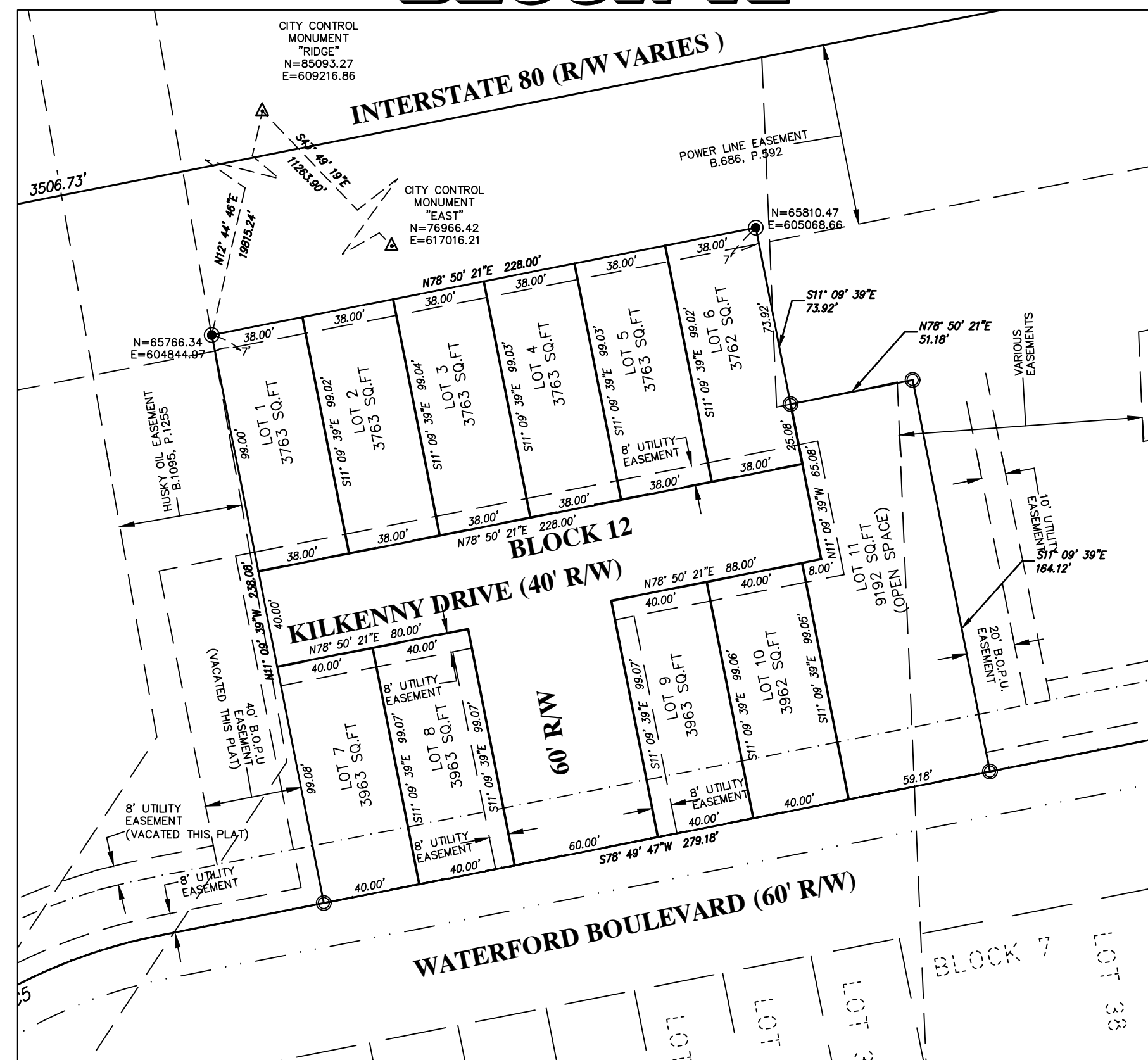
STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 W. 19th ST. CHEYENNE, WY. 82001 (307)634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 (307)322-9789

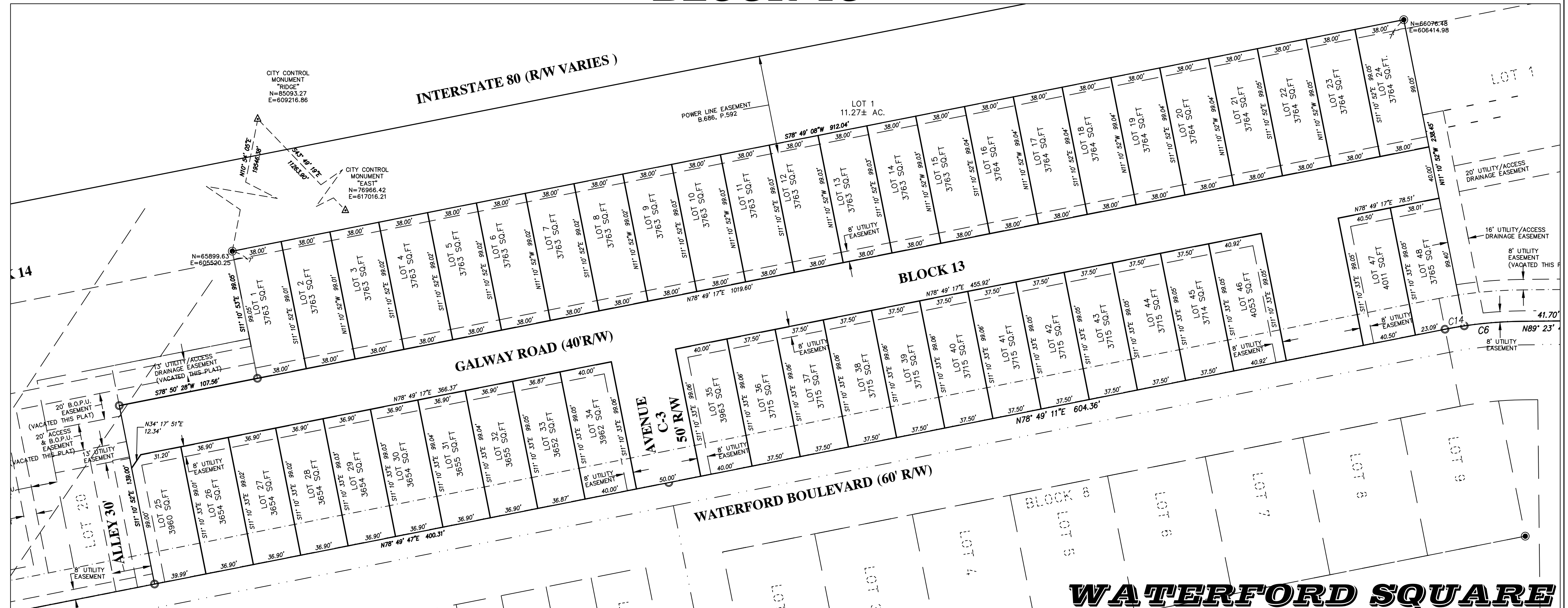
BLOCK 11



BLOCK 12



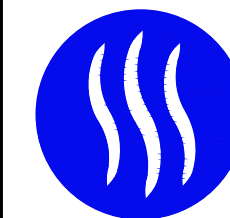
BLOCK 13



WATERFORD SQUARE 2ND FILING

A REPLAT OF LOTS 2 THRU 19
AND LOTS 21 THRU 57, BLOCK 6,
WATERFORD SQUARE,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.
PREPARED JULY, 2016

SHEET 2 OF 2



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 W. 19th ST. CHEYENNE, WY. 82001 (307)634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 (307)322-9769

UDC-16-00539-01
Final Plat/Replat

REVIEWER COMMENTS

Black Hills Corp: Robert Mestas

Black Hills is opposed to General Note (6)(iii) which would require us to provide proof of utility easement to the BOPU

Board of Public Utilities: Linda Gunter

1. If the 40' Right of Way is approved by the City, then the BOPU will not require an easement.
2. If the 40' Right of Way is not approved by the City, then appropriate BOPU easements for water and sanitary sewer utilities that are not located or constructed within the roadway or Public Right of Way must be provided. The easement width shall be for no less than 20 feet for one utility main located in the center of the easement and shall be no less than 30 feet wide when two utility lines are constructed in parallel and are centered within the easement.

Laramie County Assessor: Clarice Blanton

The Land Description does not describe all that is being re-platted; only a strip along Waterford Blvd. is described. The first portion of the Description is not shown on the map nor are the curves contained in the Curve Table. The Description begins with 'all of Lot 1, Block 1', however, it appears that all of the lots north of Waterford Blvd are 'touched' by this legal. The calls within the Description and on the map should follow one another and not have to be 'reversed'. Not all of the calls in the Description are shown on the map.

The City of Cheyenne is the owner of Lot 1, Block 6 by Special Warranty Deed, Bk 2504 Pg 285. Their name should appear in the Dedication also.

The distance between Lot 20, Block 6, Waterford Square and Lot 11, Block 12, Waterford Square, 2nd Filing is not shown. If a 20' alley is being proposed over Lot 20, it should also be called out in the Title Block and Dedication as being re-platted.

The Match lines should be noted as the calls from one detail to another are not shown.

Change the road names of Waterford Loop, Waterford Place and Waterford Lane; too confusing with Waterford Blvd. already established.

Laramie County Clerk: Vicki Swanson

All (1st Filing) places should be taken out. The first plat does not have 1st Filing on it. The Land description references all of Lot 1 Block 1 Waterford Square. This is not part of the plat according to title section on bottom right.

Plat shows Block 14 that is located in Lot 1 Block 6 that is also not included in this plat.

I would like to review again please once plat is corrected since it is so complicated.

Development: Susana Montana

I just want to express thanks for submitting a revised plat that includes a public street so the northern buildings can be addressed for emergency response purposes, metering, and convenience for the residents in the northern units. We still need to find a way to alert prospective buyers of each of the lots that will not have garbage pick-up in front of their unit that they will need to bring their trash container to the main street, quite some distance, especially through snow. Can we place a note on the lot deed to advise buyers of this fact?

Engineering Department: Michael Vinson

Please provide a drainage easement over the detention pond and appurtenant structures in Lot 1, Block 11.

Engineering Department: Nathan Beauheim

General Note 4 was apparently copied from another plat and does not appear to be relevant to this plat.

Unclear what is happening at the west end of Waterford Lane [Galway Road]. Street narrows to 32' ROW? If so, why? 20' Alley is/is not public ROW? How far north does 20' alley extend? I don't see the 20' alley on the Waterford 1st plat, so it must be created by this plat. Yet it's not within the plat boundary??? Who is the 13' utility/access easement to? Is it of record or is it created by this plat?

City lot ("Block 14") needs to be included in this plat and the City needs to be a signatory as a portion of the vacated Waterford Blvd. ROW adds to the City parcel.

LCSD #1: Chris Hout

Waterford Square Subdivision 2nd filing -- final plat comments

Note: No change from previous comments made on 5-1-15 and 8-12-16.

This development falls within the South Triad -- student's home attendance boundaries are South High School, Johnson Junior High School and Arp Elementary Schools.

Please note that this development indicates a significant number of homes and expectations are that they will produce an influx of students into the boundaries for elementary and secondary schools. Also note that due to high volume streets identified by the LCSD1 as a hazard condition, students living in this development would be provided transportation to and from school for elementary, junior high and high school.

The current attendance for these schools is as follows:

Arp Elementary -- near or at capacity with little to no space available all grades.

Johnson Junior High - below capacity with space available in both 7th and 8th grades.

South High - below capacity with space available in all grades 9-12.

Development: Seth Lloyd

Double fronted lots are prohibited according to UDC (4.3.3). Intersections in the proposed development do not meet minimum intersection spacing of 200' (UDC 4.3.4). Lots with this much frontage in the NR-3 zone are required to be alley loaded or to have a maximum of 10' wide driveways which are shared with neighbors (UDC 4.3.6).

Sanitation: Dennis Pino

The trash truck will need direct access. No backing will be allowed, due to safety policies. Block 12, Lots 7,8,9,10 and 11 will need to place garbage cans on Waterford Blvd - unless we have access in and out, without having to back up.

REVIEWERS WHICH DID NOT COMMENT

Laramie County Dispatch: Glen Crumpton

Emergency Management Agency: Rob Cleveland

Building: Amanda Barto

CenturyLink (formerly Qwest): Bob Bates

Charter (formerly Optimum): Bryan VanKirk

Engineering Department: Jim Voeller

Engineering Department: Jack Studley

Laramie County Attorney: Mark Voss

Engineering Department: James Sims

GIS/Engineering/Addressing: Gary Stogsdill

Environmental Health Department: Roy Kroeger

Fire Department: Jim Schamerhorn

Metro Planning Office (MPO): Nancy Olson

Parks and Recreation Admin: Teresa Moore

Urban Planning: Logan Graves

WyDOT: Randy Griesbach

Engineering Department: David Cole